

26NNCV01558 26NNCV01558

County: los-angeles

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Department: B

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Case Number: 26NNCV01558 Hearing Date: September 18, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION TO ENFORCE INSPECTION RIGHTS

Hearing Date: 9/18/26

CASE NO.: 26NNCV01558

CASE NAME: Robert Eberl vs. Altadena Community Garden, et al.

Moving Party: Plaintiff Robert Eberl

Responding Party: Defendants Altadena Community Garden, Joe Nagy, and Mary McGilvray

Notice: Sufficient

Ruling: DENY.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 3:30 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is a breach of fiduciary duty action.

On June 22, 2026, plaintiff Rober Eberl (Plaintiff), in pro per, filed a First Amended Complaint (FAC) against defendants Altadena Community Garden, Joe Nagy, and Mary McGilvray (collectively, Defendants) arising out of an election of corporate officers. Plaintiff alleges Defendants were involved in election misconduct, breach of fiduciary duty, unauthorized application of unapproved bylaw amendments, denial of inspection rights, and intentional infliction of emotional distress. (See FAC.)

On August 20, 2026, Plaintiff filed the instant motion seeking enforcement of inspection rights. On September 4, 2026, Defendants filed an opposition. On September 14, 2026, Plaintiff filed a reply.

LEGAL

STANDARD

Corporation Code section 6330 states that subject to section 6331, a member of a corporation may inspect and copy the record of all the members' names, addresses and voting rights. (Corp. Code, § 6330(a)(1).)

Under Corporation Code section 6331, the requesting parties may petition the superior court of the proper county for a writ of mandamus pursuant to Section 1085 of the Code of Civil Procedure compelling the corporation to comply with the demand. (Corp. Code, § 6331(i).)

Upon refusal of a lawful demand for inspection pursuant to Section 6330, the superior court may enforce the demand or right of inspection. (Corp. Code, § 6336(a).)

DISCUSSION

Here, Plaintiff prematurely makes the instant motion asking the court to enforce member

inspection rights prior to complying with statutory procedure laid out in Corporation Code section 6331. The Court has reviewed its docket and confirmed Plaintiff has not yet complied with section 6331. Thus, the motion before the Court is procedurally defective.

Accordingly, the motion to enforce member inspection rights is DENIED without prejudice.

CONCLUSION
AND ORDER

Plaintiff Rober
Eberl's motion to enforce member inspection rights is DENIED.

MOVING PARTY
shall
provide notice.